

Cryptocurrency Regulatory Landscape Outlook



Horizon: **March - May 2026**

Carver Agents

Regulation is moving from **framework design to operational enforcement** across major markets. In the EU, MiCA is now driving concrete supervisory actions: national regulators are publishing **CASP white-lists**, escalating **blacklists**, and warning incumbents that **transitional windows are closing**—notably France’s **1 July 2026** deadline for legacy providers to be MiCA-authorized or exit. This is paired with harmonisation work via ESMA guideline compliance tables and targeted investor-protection reminders (e.g., **perpetual futures** potentially treated as CFDs). These developments mean firms must treat MiCA readiness as a near-term execution program, not a policy watch item. ([AMF](#)) ([ESMA](#))

In the US, the regulatory center of gravity is shifting toward **federal stablecoin licensing** implementation (GENIUS Act), with the OCC proposing a comprehensive rule set covering **reserve assets, redemption, audits, supervision, and custody**—and explicitly prohibiting issuance by non-permitted issuers. In parallel, SEC leadership messaging signals a push toward **rulemaking and exemptions** (Project Crypto) while continuing fraud-focused enforcement. The bottom line: US crypto businesses should prepare for **bank-like controls** around payment stablecoins and tighter expectations on custody, disclosures, and marketing—while state regulators continue aggressive consumer-protection actions (e.g., kiosks/fees/receipts). ([OCC Bulletin 2026-3](#)) ([SEC Speech—Atkins/Peirce](#)) ([DFPI Coinme](#))

Detailed Outlook Analysis

What is happening and what you need to do now to prepare.

MiCA “Execution Phase”: Licensing, Passporting, and End-of-Transition Pressure (EU)

EU regulators are rapidly operationalizing MiCA through **authorization decisions, passporting, and hard deadlines**. France’s AMF has explicitly reiterated that the transitional period for legacy providers ends **1 July 2026**, after which only MiCA-authorized CASPs (or eligible notified financial entities) may provide services—backed by potential criminal penalties for illegal provision. The AMF is also publishing **CASP white-list entries** showing cross-border passporting in action (e.g., Denmark-, Malta-, Liechtenstein-authorized firms providing services in France), signaling that competitive pressure will increase as compliant firms scale across the EEA. ([AMF](#)) ([AMF—Penning](#)) ([AMF—System Pay](#)) ([AMF—Bank Frick](#))

- France: AMF deadline messaging for legacy DASPs/PSANs—**MiCA authorization required by 1 July 2026** or orderly wind-down. ([AMF](#))
- Cross-border MiCA passporting becomes real: multiple non-French CASPs authorized to operate in France under free provision of services. ([AMF—Penning](#)) ([AMF—System Pay](#))
- National licensing continues: AMF white-list includes newly licensed entities (e.g., HEXARQ) with defined service permissions (custody, exchange, execution, transfers). ([AMF—HEXARQ](#))

What to Prep Now

- Build a **MiCA authorization “critical path” plan** with dated milestones through **1 July 2026** (gap assessment → governance package → capital/insurance → ICT resilience → outsourcing register → application completeness checks). ([AMF](#))
 - Create a **passporting playbook** (target jurisdictions, notification sequencing, language/localization, complaint handling, marketing approvals) aligned to how AMF is recognizing inbound CASPs. ([AMF—System Pay](#))
 - Implement a **regulated-entity verification control** for counterparties and vendors using official regulator white-lists/registries before onboarding or referral partnerships. ([AMF—White lists](#))
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EU Harmonisation + Investor Protection: ESMA

Guidelines and “Perpetual Futures” Scrutiny (EU/EEA)

ESMA is tightening supervisory convergence under MiCA by publishing compliance tables for guidelines covering **crypto-asset transfers** and **suitability/periodic statements**, reducing room for jurisdiction shopping and increasing the likelihood of consistent examinations across the EEA. Separately, ESMA has issued a targeted reminder that “perpetual futures/perpetual contracts” offering leveraged exposure (including to crypto-assets like Bitcoin) may fall under existing national CFD product intervention measures—triggering leverage limits, risk warnings, margin close-out, and negative balance protection where applicable. This is a near-term risk for platforms marketing “perps” to retail clients in Europe through EU investment firms or tied distribution arrangements. ([ESMA—Transfer Guidelines Compliance Table](#)) ([ESMA—Suitability/Periodic Statements Compliance Table](#)) ([ESMA—Perpetual Futures/CFDs](#))

- ESMA convergence: national authorities across the EEA declare compliance/intent to comply with MiCA guideline sets. ([ESMA—Transfer Guidelines Compliance Table](#))
- ESMA warning: “perpetual futures” may be CFDs → product intervention obligations and appropriateness assessments for complex instruments. ([ESMA—Perpetual Futures/CFDs](#))

What to Prep Now

- Inventory all EU/EEA offerings labeled “**perpetual, perps, futures, contracts**” and run a **CFD classification assessment** with documented rationale and legal sign-off per jurisdiction. ([ESMA—Perpetual Futures/CFDs](#))
 - Update EU retail distribution controls: **target market narrowing**, appropriateness testing workflows, standardized risk warnings, and conflict-of-interest mapping for derivatives revenue models. ([ESMA—Perpetual Futures/CFDs](#))
 - Align client reporting to MiCA/ESMA expectations: implement periodic statement templates and suitability evidence retention consistent with guideline convergence. ([ESMA—Suitability/Periodic Statements Compliance Table](#))
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Sanctions and Restrictive Measures: Crypto Services as a Sanctions-Compliance Flashpoint (CH/EU + Member States)

Sanctions regimes are explicitly expanding into crypto rails. Switzerland has adopted additional measures effective **26 February 2026**, including prohibitions on certain crypto services to Russian nationals/companies and restrictions involving specific ruble-backed crypto assets—aligning with broader EU-linked sanctions packages. EU member-state supervisors are also emphasizing internal controls for restrictive measures in crypto-asset services (e.g., Slovenia applying EBA-aligned guidelines under Regulation 2023/1113 on information accompanying transfers of funds and certain crypto-assets). The practical implication is that sanctions compliance for crypto is no longer limited to screening wallets; it increasingly requires **service-level prohibitions**, product restrictions, and robust internal governance. ([FINMA Sanctions Notice](#)) ([Swiss Federal Council Sanctions Notice](#)) ([ATVP—Restrictive Measures/EBA Guidelines](#))

- Switzerland: expanded sanctions include **crypto-service prohibitions** tied to Russia/Belarus measures. ([FINMA Sanctions Notice](#))
- Slovenia: supervisory decisions applying EBA-aligned restrictive-measures guidance for CASPs under EU rules on transfers of funds/crypto-assets. ([ATVP—Restrictive Measures/EBA Guidelines](#))
- Finland: sanctions risk assessment flags **payment service providers** as needing improvement—relevant where crypto/payment overlap exists. ([FIN-FSA](#))

What to Prep Now

- Implement a **sanctions “service prohibition matrix”** (who you cannot serve, what services are prohibited, what assets are restricted) mapped by jurisdiction (EU/EEA vs CH vs UK vs US). ([FINMA Sanctions Notice](#))
 - Upgrade transaction monitoring to include **typology-based evasion detection** (nested services, mixers, rapid hops, fiat off-ramps) and document escalation/exit criteria. ([FIN-FSA](#))
 - For EU operations, ensure travel-rule/transfer controls and restrictive-measures governance align with supervisory expectations under Regulation 2023/1113 implementation. ([ATVP—Restrictive Measures/EBA Guidelines](#))
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Stablecoins: US Federal Licensing and Bank-Grade Controls Accelerate (US)

The GENIUS Act implementation is moving into concrete rulemaking. The OCC has issued a Notice of Proposed Rulemaking (via Bulletin 2026-3) to implement GENIUS Act requirements for payment stablecoin issuance and related custody activities, including standards for **reserve assets, redemption, risk management, audits/reports/supervision**, and pathways for state-qualified issuers transitioning to a federal framework. Critically, the GENIUS Act framework generally prohibits issuance of payment stablecoins in the US by anyone other than a **permitted payment stablecoin issuer**, and restricts offering/selling stablecoins unless the issuer meets permitted/foreign issuer requirements. This creates a near-term compliance imperative for any business distributing stablecoins to US persons—especially wallets, exchanges, payment processors, and fintech partners. ([OCC Bulletin 2026-3](#)) ([Congress.gov—GENIUS Act Text](#))

- OCC NPRM: proposes new regulatory structure (new 12 CFR part) covering stablecoin issuance and custody under OCC jurisdiction. ([OCC Bulletin 2026-3](#))
- Statutory prohibition: issuance in the US limited to **permitted issuers**; penalties for knowing violations. ([Congress.gov—GENIUS Act Text](#))

What to Prep Now

- Build a **stablecoin distribution compliance gate**: block listing/offering to US persons unless issuer status is verified as permitted/qualified under GENIUS Act pathways (and document the verification). ([OCC Bulletin 2026-3](#))
- Prepare “bank-grade” controls for any issuer/custody ambitions: **reserve policy**, redemption SLAs, independent audit readiness, operational backstop/capital planning, and exam management procedures. ([OCC Bulletin 2026-3](#))
- Submit comments (if applicable) on the OCC proposal focusing on custody scope, transition mechanics, and operational feasibility for your model. ([OCC Bulletin 2026-3](#))

Marketing, Promotions, and Consumer Protection: Enforcement is Intensifying (UK/US/EU)

Regulators are increasingly treating **promotion and retail-facing conduct** as a primary enforcement lever. In the UK, the FCA has begun legal proceedings against HTX (formerly Huobi) alleging illegal financial promotions to UK consumers, emphasizing that non-compliant crypto advertising is a **criminal offense** under the post-October 2023 regime. In the US, state regulators

are actively penalizing consumer harm in crypto access points: California's DFPI ordered Coinme to provide refunds for overcharging and receipt violations and imposed a contingent penalty structure, while Texas issued emergency cease-and-desist actions tied to alleged unregistered securities and fraud in crypto mining investment promotions. In the EU, multiple regulators continue publishing blacklists/warnings against unauthorized entities and websites, reinforcing that "unauthorized" is a fast path to enforcement and reputational damage. ([FCA—HTX Press Release](#)) ([FCA—HTX Legal Proceedings](#)) ([DFPI Coinme](#)) ([Texas SSB News Release](#)) ([Texas Emergency Order PDF](#)) ([AMF Blacklists](#))

- UK: FCA legal action against HTX for alleged illegal promotions to UK consumers. ([FCA—HTX Press Release](#))
- US-CA: DFPI action against Coinme for fee/receipt violations with refunds and penalties. ([DFPI Coinme](#))
- US-TX: emergency cease-and-desist actions targeting alleged fraud/unregistered securities in crypto mining investments. ([Texas Emergency Order PDF](#))
- EU-FR: AMF maintains updated blacklists for unauthorized crypto-asset derivatives and related fraud categories. ([AMF Blacklists](#))

What to Prep Now

- Implement a **financial promotions approval workflow** (jurisdiction-tagged content library, influencer controls, social monitoring, and pre-clearance evidence retention) for UK-facing communications. ([FCA—HTX Press Release](#))
- For US retail channels (kiosks/agents), deploy **fee-cap enforcement and receipt completeness controls** with automated exception reporting and mystery-shop testing. ([DFPI Coinme](#))
- Establish a **fraud/unauthorized-entity screening process** for affiliates, lead-gen partners, and referral programs using regulator blacklists and warnings before campaigns launch. ([AMF Blacklists](#))

Registration and Gatekeeper Expectations: Operating “Unregistered” Remains a High-Risk Pattern (EU + Member States)

Even as MiCA becomes the primary EU framework, regulators continue to enforce legacy AML registration regimes and highlight the “gatekeeper” role of crypto providers. The Dutch central bank (DNB) publicized a significant fine against Aux Cayes Fintech (OKX) for offering crypto

services without required registration during the pre-MiCA period, emphasizing that lack of registration undermined unusual transaction reporting to the FIU and AML/CTF supervision. This enforcement posture signals that regulators will continue to scrutinize historical conduct and expect robust AML controls as firms transition into MiCA licensing. ([DNB—OKX Fine Notice](#))

- Netherlands: DNB fine for operating without required registration (pre-MiCA), with explicit AML gatekeeper rationale. ([DNB—OKX Fine Notice](#))

What to Prep Now

- Run a **lookback compliance review** for EU jurisdictions where you operated pre-MiCA (registration status, STR reporting capability, customer migration decisions) and document remediation. ([DNB—OKX Fine Notice](#))
- For MiCA transition, integrate AML/CTF controls into the authorization narrative: governance, suspicious activity reporting, and FIU interfacing readiness. ([DNB—OKX Fine Notice](#))
- Create an **evidence pack** for regulators demonstrating how you prevented recurrence (customer migration controls, geo-fencing, onboarding restrictions). ([DNB—OKX Fine Notice](#))

US SEC Direction: Rulemaking Signals + Fraud-Focused Enforcement Continues (US)

SEC leadership communications indicate a strategic shift toward clearer pathways for compliant innovation while maintaining enforcement against fraud. SEC remarks at ETHDenver describe “Project Crypto” initiatives including innovation exemptions, custody and transfer-agent rulemaking, no-action letters, and guidance to integrate tokenized securities into existing systems. At the same time, SEC statements on fraud verdicts underscore continued focus on securities fraud and registration failures tied to retail harm. For organizations, this combination increases the value of proactive engagement and formal compliance positioning—especially where tokens may be characterized as securities or where custody/transfer functions are offered. ([SEC Speech—Atkins/Peirce](#)) ([SEC Statement—Sanchez Verdict](#)) ([SEC Corp Fin Priorities](#))

- SEC “Project Crypto” messaging: exemptions + custody/transfer-agent rulemaking + no-action tools. ([SEC Speech—Atkins/Peirce](#))
- SEC enforcement posture remains active against fraud and registration failures. ([SEC Statement—Sanchez Verdict](#))
- SEC Corp Fin indicates crypto asset regulation is a rulemaking priority area. ([SEC Corp Fin Priorities](#))

What to Prep Now

- Map your products to **custody/transfer-agent-like functions** and prepare a compliance dossier (segregation, controls, disclosures, auditability) anticipating SEC rulemaking direction. ([SEC Speech—Atkins/Peirce](#))
- Establish a **token classification and disclosure committee** (legal, compliance, product) with documented Howey/functional analyses and escalation triggers for SEC engagement. ([SEC Corp Fin Priorities](#))
- Strengthen fraud controls: tighten KYC/communications oversight for high-yield programs, referrals, and “mining” or lending promotions that resemble securities offerings. ([SEC Statement—Sanchez Verdict](#))